

BEFORE THE BOARD OF PSYCHOLOGY OF THE STATE OF IOWA

IN THE MATTER OF	)	
THE APPLICATION	)	PRELIMINARY NOTICE OF
FOR LICENSURE OF	)	INTENT TO DENY LICENSURE
	)	
Lynne Lutze, Ph.D., LMHC	)	
APPLICANT.	)	

TO: Lynne Lutze

YOU ARE HEREBY NOTIFIED that on January 3, 2008, the Iowa Board of Psychology voted to deny your application for an Iowa license to practice psychology. The intent to deny licensure is based upon the following:

LEGAL GROUNDS

I. Iowa Code section 154B.6 provides, in relevant part, that an applicant for licensure as a psychologist shall meet the following requirements in addition to those specified in Iowa Code chapter 147:

1. Except as provided in this section, after July 1, 1985 a new applicant for licensure as a psychologist shall possess a doctoral degree in psychology from an institution approved by the board and shall have completed at least one year of supervised professional experience under the supervision of a licensed psychologist.
2. Have passed an examination administered by the board to assure the applicant's professional competence. The examination of any of its divisions may be given by the board at any time after the applicant has met the degree requirements of this section.

II. 645 Iowa Administrative Code 240.3(3) states:

240.3(3) As of January 1, 2006, at the time of an applicant's graduation:

a. The program from which the doctoral degree in psychology is granted must be:

- (1) Accredited by the American Psychological Association; or
- (2) Accredited by the Canadian Psychological Association; or
- (3) Designated by the Association of State and Provincial Psychology Boards (ASPPB)/National Register Designation Project as a doctoral program in psychology; or

- b. The applicant must hold a specialty diploma by examination from the American Board of Professional Psychology.

III. 645 Iowa Administrative Code 240.4 states, in relevant part:

240.4 An applicant must pass the national examination and Iowa jurisprudence examination to be eligible for licensure in Iowa.

240.4(1) To be eligible to take the national examination, the applicant shall:

- a. Meet all requirements of subrule 240.2(1), paragraphs "a" to "c"; and
- b. Provide official copies of academic transcripts sent directly from the school to the board of psychology examiners.

FACTUAL CIRCUMSTANCES

1. On September 17, 2007, the Iowa Board of Psychology (Board) received an application for licensure from Lynne Lutze (Applicant).

2. The Applicant submitted, or caused to be submitted, the following documentation for her licensure application:

- An official transcript from Capella University of the Applicant's education records. The transcript verifies the award of a Doctor of Philosophy Degree in Clinical Psychology on September 30, 2006.
- Supervision registration forms completed by three licensed psychologists. One supervision registration form was submitted on September 17, 2007, and included a supervision report completed by Marc Wruble, Ph.D., a licensed psychologist in Wisconsin. The supervision report verifies completion of approximately two years of pre-doctoral experience. The other two supervision registration forms were submitted by Iowa licensed psychologists. The Applicant included a letter stating that the two clinical psychologists will supervise her post doctoral work experience.
- A statement of the areas of professional competency signed by the Applicant and notarized on September 21, 2006.

3. Documentation obtained from the American Psychological Association (APA) indicates that the Capella University doctoral program in clinical psychology is not an APA accredited program in clinical psychology. Neither is the Capella University program listed by the Association of State and Provincial Psychology Boards

(ASPPB)/National Register Designation Project as a designated doctoral program in psychology.

NOTICE OF APPEAL RIGHTS

Pursuant to the provisions of 645 IAC 11.32, you may appeal the Board's preliminary notice of denial of license by serving a notice of appeal and request for hearing upon the board not more than thirty days following the date of mailing of this notice. The request for hearing shall specifically describe the facts to be contested and determined at the hearing. The hearing shall be held pursuant to the process outlined at 645 IAC Chapter 11. If an appeal is not filed within this time period, this preliminary notice of intent to deny licensure will become final.

This preliminary notice of intent to deny licensure is approved by the board on January 3, 2008.